

Udai Narayan Yadav v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 15 July 2022 · WRIT - C No. - 17832 of 2022 · **Writ disposed; clause 6.5 objection; coercive action stayed eight weeks**

HEADNOTE

A writ seeking certiorari against a Tehsildar recovery citation for an electricity demand was disposed without opinion on merits. The consumer was given liberty to file an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005, to be decided in accordance with law after hearing, with coercive recovery stayed for eight weeks or until that objection was decided.

FACTUAL SUMMARY

Udai Narayan Yadav challenged a recovery citation dated 20 April 2022 issued by the Tehsildar, Saidpur, District Ghazipur, under rule 141(3) of the U.P. Revenue Code, 2006, seeking certiorari to quash that citation. The writ was first listed on 28 June 2022 and adjourned as fresh. On 15 July 2022, counsel for the distribution licensee stated on instructions that the petitioner could object to the impugned demand and that the objection would be decided in a time-bound manner.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed-demand-objection

HOLDING

Without expressing any opinion on merits, the writ against a Revenue Code recovery citation for an electricity demand was disposed with liberty to file an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the licensee within four weeks, to be decided in accordance with law within the next four weeks after hearing, and with coercive action stayed for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ Writ against a recovery citation for an electricity demand was disposed by remitting the consumer to a Para 6.5 objection, without a merits determination. ¶ 1

clause-6.5-statutory-remedy-disputed-bill The disputed demand underlying the recovery citation was left to be decided on a clause 6.5 objection by the licensee, in accordance with law after hearing. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE IMPUGNED DEMAND AND RECOVERY CITATION

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 1